

DATA SHARING AGREEMENT

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PREAMBLE.

This Data Sharing Agreement is made and entered into on 2025-11-21, by and between the following contracting parties, namely:

(a) the company/organisation with the name “MAGGIOLI” and the distinctive title “PROVIDER”, incorporated in ..., and having its registered address at ..., with VAT No. ..., as legally represented at the time of signing of this Agreement by the , upcast_provider, hereinafter referred to, for the sake of brevity, as “Data Provider” or “Party A”; and

(b) the company/organisation with the name “.....” and the distinctive title “CONSUMER”, incorporated in ..., and having its registered address at ..., with VAT No. ..., as legally represented at the time of signing of this Agreement by the ..., upcast_consumer, hereinafter referred to, for the sake of brevity, as “Data Consumer” or “Party B”,

each hereinafter referred to as the “Party” and jointly both of the above the “Parties”, the following have been agreed and mutually accepted:

1. SCOPE OF APPLICATION.

1.1. The Parties have entered into this Data Sharing Agreement to provide for the sharing of Data for the Permitted Purpose(s) (as defined below) and to ensure that there are appropriate provisions and arrangements in place to properly safeguard the information shared between the Parties. This Agreement and its Appendices (hereinafter the "Agreement") set out the obligations of the Parties in relation to the sharing of data, including the obligations of the Parties' employees or any sub-processors of data.

1.2. The Parties seek to implement a data sharing agreement that complies with the requirements of the current data protection legal framework (e.g. the GDPR). Therefore, this Agreement shall also apply to any processing of personal data carried out pursuant to the current data protection legislation, on the basis of the contractual relationship between the Parties.

1.3. This Agreement was generated using the UPCAST Negotiation Software (<https://dips.soton.ac.uk/negotiation-plugin>) under Negotiation ID 69209276ea4ff26dd95c6cb7.

1.4. This Agreement includes a human-readable section, which constitutes the legally binding contract between the Parties, and a corresponding Machine-Readable (MR) section, provided in the Appendix A1, to facilitate automated processing and enforcement.

2. DEFINITIONS.

2.1. For the purposes hereof, the terms "personal data", "data subject", "processing", "data controller", "data processor", "third party", "consent", "data breach", "security incident", "supervisory authority", as well as the other terms referred to herein shall have the same meaning as defined in the applicable legislation on personal data protection (including, but not limited to, General Regulation (EU) 2016/679 ("GDPR") etc.).

2.2. The following terms shall have the meanings set out below:

2.2.1. "Data Protection Legislation": means (a) any law, statute, declaration, decree, directive, legislative enactment, order, ordinance, regulation, rule or other binding restriction (as amended, consolidated or re-enacted from time to time) which relates to the protection of individuals with regards to the processing of Personal Data to which a Party is subject, including but not limited to the GDPR, the UK General Data Protection Regulation ("UK GDPR"), and the Data Protection Act 2018 ("DPA"); and (b) any code of practice or guidance published by a Regulatory Body from time to time.

2.2.2. "Pseudonymisation": means the processing of personal data in such a manner that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organisational measures to ensure that the personal data are not attributed to an identified or identifiable natural person.

2.3. The following terms used in the Agreement, and in the Machine-Readable (MR) section of the Appendix A1 shall have the meanings set out below:

2.3.1. "Student": Humans that are students (Please refer to <https://w3id.org/dpv/owl#Student> for more details.)

2.3.2. "Delete": To permanently remove all copies of the Asset after it has been used. Use a constraint to define under which conditions the Asset must be deleted. (Please refer to <http://www.w3.org/ns/odrl/2/delete> for more details.)

2.3.3. "Analyse Data": to study or examine the data in detail (Please refer to <https://w3id.org/dpv/owl#Analyse> for more details.)

2.3.4. "Academic Research": Purposes associated with conducting or assisting with research conducted in an academic context e.g. within universities (Please refer to <https://w3id.org/dpv/owl#AcademicResearch> for more details.)

3. PURPOSE OF THE AGREEMENT.

The purpose of this Agreement is to define the terms and conditions governing the sharing of data between the Data Provider and the Data Consumer. Specifically, the Data Provider agrees to sell, and the Data Consumer agrees to purchase, the dataset titled "Example Dataset UPCAST" for a total consideration of 100 GBP.

4. DESCRIPTION OF DATA.

4.1. The Data to be shared under this Agreement is described as follows:

The Data to be shared under this Agreement is the "Example Dataset UPCAST" at a price of £100. Example of a Dataset showing a minimal set of properties for Usage Constraints It is categorized as Training and provided in CSV and has a total size of 346. It is accessible at <http://upcast-project.eu/dataset/example-dataset-upcast> and with a policy available at <https://www.upcast-project.eu/upcast-vocab/1.0/policy:001>. Associated tags include Training, Gym. Environmental sustainability metrics for both generation and serving are detailed in Machine-Readable Appendix A1.

4.2. The Machine-Readable (MR) version of the description of data (including its URI, description, format, size, associated tags, and environmental cost metrics) is presented in the Appendix A1.

5. DATA USE – PERMITTED PURPOSES.

5.1. The Shared Data shall be used by the Data Consumer solely for the permitted purpose(s) set out in Clauses 7 and 8.

5.2. No other use is permitted without prior written consent of the Data Provider.

6. GENERAL OBLIGATIONS OF THE PARTIES.

6.1. Both Parties are obliged to fulfill their obligations hereunder, including the processing of the personal data processed, to comply with the applicable data protection law and to apply the basic principles for the protection of personal data, such as the principles of necessity, relevance, confidentiality, availability and integrity. The processing of personal data will also be carried out in accordance with the decisions of the competent Data Protection Authority, the working party under Article 29 of Directive 95/46/EC and the European Data Protection Board under Article 68 of the GDPR.

6.2. The Data Provider shall ensure that the Data shared is accurate, complete, and up-to-date.

6.3. The Data Consumer shall not transmit, disclose, tolerate or provide access to the Data to any third party without the prior written consent of the Data Provider, at its sole discretion, unless expressly required to do so under applicable law.

7. POLICIES AND RULES.

The Parties must comply with the following Rules:

7.1. Permission

There are no permission related rules.

7.2. Prohibition

- Party B is prohibited by Party A to apply the delete action on the social media analytics dataset with the title is , specifically for the purpose of benchmarking. This clause shall apply only under the following constraints: the absolute position is . Party B must enforce this prohibition in all agreements with its agents and immediately report any attempted contravention to Party A.

7.3. Obligation

- Party B is obliged to Party A to apply the analyse data action on the social media analytics dataset, specifically for the purpose of academic research. This clause shall apply only under the following constraints: the absolute position is and the absolute position is . Party B shall follow all relevant standards and ensure proper execution of the analyse data action.

7.4. Duty

There are no duty related rules.

7.5. The Machine-Readable (MR) version of policies and rules is presented in the Appendix A1.

8. CUSTOM ARRANGEMENTS.

In addition to the aforementioned (in Clause 7) standard policies, the following custom arrangements are mutually agreed upon by the Parties:

9. DATA PROTECTION.

9.1. The Parties may each process Personal Data under this Agreement. The Parties acknowledge that the factual arrangement between them dictates the classification of each Party in respect of the Data Protection Legislation. Notwithstanding the foregoing, the Parties anticipate that each Party shall act as a Controller in its own right. For the avoidance of doubt, the parties are not joint controllers for the purposes of Article 26 of the GDPR.

9.2. Where a Party is acting as a Controller in relation to this Agreement, it shall comply with its obligations under the Data Protection Legislation.

9.3. Where the Data Provider collects Personal Data which subsequently sells to the Data Consumer, Data Provider shall:

- i. Ensure that it is not subject to any prohibition or restriction which would prevent or restrict it from disclosing or transferring the Personal Data to the Data Consumer, as required under this Agreement; or prevent or restrict the Data Consumer from processing the Personal Data as envisaged under this Agreement;
- ii. Ensure that all fair processing notices have been given (and/or, as applicable, valid consents obtained that have not been withdrawn) and are sufficient in scope and kept up-to-date in order to meet the transparency requirements to enable each Party to process the Personal Data in order to obtain the benefit of its rights, and to fulfil its obligations, under this Agreement in accordance with the Data Protection Legislation. For the avoidance of doubt, the Parties do not warrant to each other that any use of transferred Personal Data outside the scope of this Agreement shall be compliant with the Data Protection Legislation;
- iii. Ensure that the Personal Data is adequate, relevant and limited to what is necessary in relation to the Permitted Purpose; and accurate and, where necessary, up to date; having taken

every reasonable step to ensure that any inaccurate Personal Data (having regard to the Permitted Purpose), has been erased or rectified; and

iv. Ensure that the Personal Data is transferred between the Parties by a secure means.

9.4. Each Party shall indemnify and keep the other fully indemnified from and against any and all losses, fines, liabilities, damages, costs, claims, amounts paid in settlement and expenses (including legal fees, disbursements, costs of investigation, litigation, settlement, judgment, interest and penalties) that are sustained or suffered or incurred by, awarded against or agreed to be paid by, the other Party as a result of, or arising from, a breach by each Party of its obligations under this Clause 9 (Data Protection) and/or the Data Protection Legislation, including, in particular, pursuant to:

- i. any monetary penalties or fines levied by any Regulatory Body on the other Party;
- ii. the costs of any investigative, corrective or compensatory action required by any Regulatory Body, or of defending proposed or actual enforcement taken by any Regulatory Body;
- iii. any losses suffered or incurred by, awarded against, or agreed to be paid by the other Party, pursuant to a claim, action or challenge made by a third party against the other Party, (including by a data subject); and
- iv. except to the extent covered by Clause 12, any losses suffered or incurred, awarded against or agreed to be paid by the other Party.

9.5. Nothing in this Agreement will exclude, limit or restrict each Party's liability under the indemnity set out in Clause 12.

10. TECHNICAL AND ORGANISATIONAL SECURITY MEASURES - DATA SHARING MECHANISMS.

10.1. Both Parties shall implement and maintain, from the outset and before accessing the Data, appropriate technical and organisational measures, in accordance with current best practice and the state of the art in the relevant sector of activity, taking into account the implementation costs, and the nature, scope, circumstances and purpose of the processing, as well as the different probability of occurrence and the severity of the risk of the rights and freedoms of the persons concerned, in order to protect the Data being processed against accidental or unlawful destruction or accidental loss (including erasure), alteration (including destruction), modification, unauthorised disclosure, use or access and any other unlawful form of processing. Such measures will include, but shall not be limited to the pseudonymisation and encryption of Data, where appropriate; the ability to ensure the ongoing confidentiality, integrity, availability and resilience of processing systems and services on an ongoing basis; the ability to restore the availability and access to the Data in a timely manner in the event of a physical or technical incident, including a Data Breach; a process for regularly testing, assessing and evaluating the effectiveness of the technical and organisational measures in order to ensure the security of the processing of Data.

10.2. In assessing the appropriate level of security, both Parties shall take account in particular of the risks that are presented by processing, in particular from a Personal Data Breach (as defined under GDPR).

10.3. Both Parties agree to implement and maintain data-sharing mechanisms that: (a) comply with all applicable laws and regulations; (b) ensure the confidentiality and integrity of data during transmission; and (c) guarantee that each Party receives access to the Data as specified in this Agreement.

10.4. Data sharing pursuant to this Agreement shall be conducted exclusively through secure communication channels.

10.5. All data transfers must be encrypted during transmission and comprehensively logged.

11. CONFIDENTIALITY.

- 11.1. Data Consumer agrees to treat all Data shared under this Agreement as confidential.
- 11.2. Unless otherwise agreed, each Party shall maintain absolute confidentiality with respect to this Agreement, its activities and any information and documentation relating to the other Party (or anyone on its behalf) of which it becomes aware as a result of its cooperation with the other Party.
- 11.3. The confidentiality and non-disclosure obligations set forth herein shall remain indefinitely, also following the termination and/or expiration of this Agreement and the cooperation of the Parties.

12. LIABILITY.

Each Party shall be fully liable to the other for any act and/or omission by itself and/or any of its employees, agents or assistants and/or any of its subcontractors. The defaulting Party is obliged to compensate its counterparty for any positive and/or consequential damage and/or moral damage that it or a third party (natural or legal person), to which the defaulting party is liable, may suffer from a breach of the obligations arising hereunder by it (i.e. the defaulting party), its employees, agents, assistants and/or any subcontractors.

13. DURATION AND TERMINATION OF THE AGREEMENT.

13.1. Either Party may terminate this Agreement for any significant reason by providing the other Party with thirty (30) days' prior written notice. For the purposes of this Agreement, a "significant reason" shall include, but is not limited to: (a) a change in applicable laws, regulations, or data protection requirements that makes data sharing unlawful or unduly burdensome; (b) reasonable concerns regarding the security, integrity, or misuse of shared data by the Data Consumer; (c) Reputational risk or public concern arising from the data sharing relationship; (d) a corporate transaction (such as a merger, acquisition, or divestiture) that materially affects the basis for this Agreement; and (e) a breakdown in the collaborative relationship that materially impairs the ability of the Parties to perform their obligations in good faith. The terminating Party shall act reasonably and in good faith when invoking a significant reason for termination.

13.2. A breach of any term hereof shall be deemed a material breach of this Agreement.

13.3. Upon termination of this Agreement for any reason:

- (a) Cessation of Data Sharing: Data Consumer shall immediately cease all operations related to the data being processed under this Agreement.
- (b) Return or Destruction of Shared Data: Data Consumer shall, within thirty (30) days of termination and in accordance with the instructions of the Data Provider, return or permanently and securely delete all data received from the Data Provider, unless retention is required to comply with applicable laws, regulations, or contractual obligations.
- (c) Confirmation of Destruction: Upon request, the Data Consumer shall provide written confirmation that all shared data has been destroyed in accordance with this clause.

13.4. It is expressly agreed that the obligations assumed by the Parties under this Agreement shall survive the termination or any other cancellation of this Agreement.

14. CONTACT.

14.1. With respect to any matter relating to this Agreement, the Parties shall communicate with each other through the contact persons, addresses, emails and telephone numbers listed in Appendix A2 of this Agreement.

14.2. In the event of a change in the contact details, each Party shall inform the other Party in writing and without delay of the change.

14.3. Any statement or notice sent between the Parties via email, as addressed, shall become effective upon receipt by the recipient. Any notice or communication sent by email shall be deemed received on the next business day following transmission (to the addresses indicated below), provided that no delivery failure notification is received by the sender.

14.4. Notices made by post are deemed to have been delivered within seventy two (72) hours upon being sent, and if delivered by courier- on the date of the actual receipt signed by a representative of the recipient.

15. OTHER PROVISIONS.

15.1. If any term of this Agreement is declared invalid or unenforceable for any reason or cause, the validity of this Agreement shall not be affected, and the remaining terms shall remain in effect as if the invalid or unenforceable term had not been included herein.

15.2. This Agreement may be amended only by new written agreement between the Parties.

15.3. The Parties acknowledge that in the event of any conflict between the provisions of this Agreement and other prior agreements governing the processing of data, the provisions herein shall prevail.

15.4. In the event of any inconsistency between the terms of this Agreement and the Appendices, the provisions of this Agreement shall prevail.

16. DISPUTE RESOLUTION.

The Parties shall endeavour in good faith to resolve amicably any dispute and/or difference arising out of the Agreement and/or the Appendices thereto, which form an undivided and integral part thereof. In the event of failure to resolve any dispute / difference amicably, the courts of the country in which the Data Provider is located shall be exclusively responsible for its resolution.

17. GOVERNING LAW AND JURISDICTION.

17.1. This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and interpreted in accordance with the laws of the country in which the Data Provider is located.

17.2. Each Party irrevocably submits to the exclusive jurisdiction of the courts of the country in which the Data Provider is located over any claim or matter arising under, or in connection with, this Agreement.

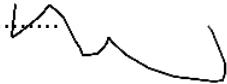
18. SIGNATURES.

IN WITNESS WHEREOF, this Agreement has been entered into on the date stated at the beginning of it and should remain in force for 6 months from the Effective Date, unless earlier terminated in accordance with this Agreement.

SIGNED by

Duly authorised for and on behalf of "Data Provider", upcast_provider

Signature

.....

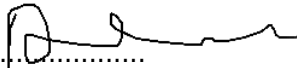
Name

.....
Date

.....2025-11-21.....

SIGNED by
Duly authorised for and on behalf of “Data Consumer”, upcast_consumer

Signature

.....

Name

.....
Date

.....2025-11-21.....

19. Appendix

A1. Machine Readable

1. ODRL Rules

1. Prohibition:

rule: <http://www.w3.org/ns/odrl/2/Prohibition>
action:
 source: '<http://www.w3.org/ns/odrl/2/delete>',
actor:
 @type: 'PartyCollection',
 source: '<https://w3id.org/dpv/owl#Student>',
target:
 @type: 'AssetCollection',
 source: '<http://example.org/datasets/socialMediaAnalytics>',
 refinement:
 - leftOperand: '<http://example.org/datasets/title>',
 operator: '<http://www.w3.org/ns/odrl/2/eq>',
 rightOperand: "
purpose: '<https://www.cactusweb.gr/vocab/Benchmarking>'
constraints:
 - leftOperand: <http://www.w3.org/ns/odrl/2/absolutePosition>
 operator: <http://www.w3.org/ns/odrl/2/eq>
 rightOperand:

2. Obligation:

rule: <http://www.w3.org/ns/odrl/2/Obligation>
action: <https://w3id.org/dpv/owl#Analyse>
actor: <https://w3id.org/dpv/owl#Student>
target: <http://example.org/datasets/socialMediaAnalytics>
purpose: '<https://w3id.org/dpv/owl#AcademicResearch>'
constraints:
 - leftOperand: <http://www.w3.org/ns/odrl/2/absolutePosition>
 operator: <http://www.w3.org/ns/odrl/2/eq>
 rightOperand:

 - leftOperand: <http://www.w3.org/ns/odrl/2/absolutePosition>
 operator: <http://www.w3.org/ns/odrl/2/eq>
 rightOperand:

2. Data Resource Description

- Title: Example Dataset UPCAST
- Price: 100
- Uri: <http://upcast-project.eu/dataset/example-dataset-upcast>
- Policy Url: <https://www.upcast-project.eu/upcast-vocab/1.0/policy:001>
- Environmental Cost Of Generation: {'additionalProp1': '', 'additionalProp2': ''}
- Environmental Cost Of Serving: {'additionalProp1': '', 'additionalProp2': ''}
- Description: Example of a Dataset showing a minimal set of properties for Usage Constraints
- Type Of Data: Training
- Data Format: csv
- Data Size: 346
- Tags: Training, Gym

3. Data Processing Workflow (DPW)

3.1. @context:
(none)

3.2. @graph:
(none)

A2. Communication and Persons in Charge

A2.1 Data Provider

- Organization: MAGGIOLI
- Contact Person: upcast_provider
- Position Title:
- Email: upcast_provider@example.com
- Phone:
- Address:

A2.2 Data Consumer

- Organization: upcast_consumer
- Contact Person: upcast_consumer
- Position Title:
- Email: upcast_consumer@example.com
- Phone:
- Address: